

EXHIBIT D

COVER PAGE

Claim: 2016PI020527

Name: ANTONIA PIZZICHEMI

Time: 3/11/2019 5:09:57 PM

Claimant: TRAVIS BRECONIDGE



New York City Comptroller
Scott M. Stringer

1 Centre Street
New York, NY 10007

Form Version: NYC-COMPT-BLA-PI1-C

Personal Injury Claim Form

Electronically filed claims must be filed at the NYC Comptroller's Website. If your claim is not resolved within 1 year and 90 days from the date of occurrence you must start legal action to preserve your rights.

I am filing: ☐ On behalf of myself.

☐ On behalf of someone else. If on someone else's behalf, please provide the following information.

Last Name:

First Name:

Relationship to
the claimant:

Claimant Information

*Last Name: Breconidge

*First Name: Travis

*Address: 730 E 236th Street

Address 2: Apt 3D

*City: Bronx

*State: NEW YORK

*Zip Code: 10466

*Country: USA

Date of Birth: Format: MM/DD/YYYYSoc. Sec. # HICN:
(Medicare #) Date of Death: Format: MM/DD/YYYYPhone:

*Email Address: nbagley@bagleyfirm.com

*Retype Email
Address: nbagley@bagleyfirm.comOccupation: City Employee? ☐ Yes ☒ No ☐ NAGender ☒ Male ☐ Female ☐ Other☒ Attorney is filing.

Attorney Information (If claimant is represented by attorney)

Firm or Last Name: The Bagley Firm, P.C.

Firm or First Name:

Address: 903B Sheridan Ave

Address 2:

City: Bronx

State: NEW YORK

Zip Code: 10451

Tax ID:

Phone #: (718) 705-7999

*Email Address: nbagley@bagleyfirm.com

*Retype Email
Address: nbagley@bagleyfirm.com

The time and place where the claim arose

*Date of Incident: 04/13/2016 Format: MM/DD/YYYY

Time of Incident: 6:00 PM Format: HH:MM AM/PM

*Location of
Incident: Outside 1058 East 228th Street,
Bronx, NYAddress: Address 2: City:

*State: NEW YORK

Borough: BRONX

* Denotes required fields. A Claimant OR an Attorney Email Address is required.



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Scott M. Stringer

***Manner in which
claim arose:**

At the above specified time and place, without justification or provocation and without a warrant, NYPD officers assaulted, accosted, battered, arrested, confined, unduly restrained and wrongfully prosecuted Claimant. Claimant was held in the 47th Pct for approximately 24 hours, Central Booking for approximately 24 hours and Rikers Island for approximately one day until he was released on April 16, 2016.

More specifically, as Claimant was lawfully outside his home, NYPD officers without a warrant, assaulted him and placed him under arrest. He was later charged with Criminal Possession of a Weapon and Criminal Possession of a Controlled Substance among other charges.

NYSCEF DOC. NO. 39

Office of the New York State Comptroller
RECEIVED NYSCEF City 09/06/2024



New York City Comptroller
Scott M. Stringer

1 Centre Street
New York, NY 10007

**The items of
damage or injuries
claimed are
(include dollar
amounts):**

Physical Injury	\$500,000.00
Damage to Reputation in Community	\$500,000.00
Loss of Liberty	\$500,000.00
Psychological Overlay	\$500,000.00



New York City Comptroller
Scott M. Stringer

1 Centre Street
New York, NY 10007

Medical Information

1st Treatment Date:		Format: MM/DD/YYYY
Hospital/Name:		
Address:		
Address 2:		
City:		
State:		
Zip Code:		
Date Treated in Emergency Room:		Format: MM/DD/YYYY
Was claimant taken to hospital by an ambulance?	☐ Yes ☐ No ☐ NA	

Employment Information (If claiming lost wages)

Employer's Name:		
Address		
Address 2:		
City:		
State:	NEW YORK	
Zip Code:		
Work Days Lost:		
Amount Earned Weekly:		

Treating Physician Information

Last Name:		
First Name:		
Address:		
Address 2:		
City:		
State:		
Zip Code:		

Witness 1 Information

Last Name:		
First Name:		
Address		
Address 2:		
City:		
State:		
Zip Code:		Phone:

Witness 2 Information

Last Name:		
First Name:		
Address		
Address 2:		
City:		
State:		
Zip Code:		Phone:

Witness 3 Information

Last Name:		
First Name:		
Address		
Address 2:		
City:		
State:		
Zip Code:		Phone:

Witness 4 Information

Last Name:		
First Name:		
Address		
Address 2:		
City:		
State:		
Zip Code:		Phone:

NYSCEF DOC. NO. 39

RECEIVED NYSCEF: 09/06/2024

New York City Comptroller
Scott M. Stringer1 Centre Street
New York, NY 10007

Complete if claim involves a NYC vehicle

Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Insurance Information

Insurance Company
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

Non-City vehicle information

Make, Model, Year
of Vehicle:

Plate #:

VIN #:

City vehicle information

Plate #:

City Driver Last
Name:City Driver First
Name:Description of
claimant:☐ Driver☐ Passenger☒ Pedestrian☐ Bicyclist☐ Motorcyclist☐ OtherTotal Amount
Claimed:

\$2,000,000.00

Format: Do not include "\$" or ",".

The **Total Amount Claimed** can only be entered once the following
required fields are entered:

Claimant Last Name

Claimant First Name

Claimant Address, City, State, Zip Code, and Country

Claimant Email or Attorney Email

Date of Incident

Location of Incident (including State)

Manner in which claim arose

I certify that all information contained in this notice is true and correct to the best of my knowledge and belief. I understand that the willful
making of any false statement of material fact herein will subject me to criminal penalties and civil liabilities.

eCLAIM Receipt

You have successfully filed your claim.

By successfully filing your claim, you have certified that all information provided is true and correct to the best of your knowledge and belief. You also understand that the willful making of any false statement of material fact herein may subject you to criminal penalties and civil liabilities.

Please allow up to 30 days to receive an email acknowledging your claim.

If you have any questions please contact 212-669-3916.

Your Receipt Number is the following:

201600026020

You uploaded:

Claim Form: 1

Supporting Documents:0

7/12/2016 8:16 AM

Claimant Last Name:Breconidge

Claimant First Name:Travis



THE CITY OF NEW YORK OFFICE OF THE COMPTROLLER
1 CENTRE STREET, NEW YORK, N.Y. 10007-2341

Scott M. Stringer
COMPTROLLER

Date: 07/22/2016

NOTICE OF 50-H HEARING

015 - 280

BAGLEY FIRM
903B SHERIDAN AVENUE
BRONX, NY 10451

Re: Claimant Name: TRAVIS BRECONIDGE
ClaimNumber: 2016PI020527

Dear Sir / Madam:

Please take notice that, pursuant to Section 50-h of the General Municipal Law (GML), claimant is mandated by law to appear at the following location, at the date and time specified below, to be orally examined under oath relative to the occurrence and extent of injuries for which the above claim is made:

Date of Hearing: 08/22/2016

Time of Hearing: 04:00 PM

Location of Hearing: PARK & NGUYEN
1809 PAULDING AVENUE 2ND FLOOR
BRONX, NY 10462
718 892 9500

Please note that all infant claimants must appear.

The claimant should be accompanied by his/her attorney. Claimant is further mandated, pursuant to Section 93(d) of the New York City Charter and Section 50-h of the GML, to present him/herself for a physical examination at a date and location to be provided under separate cover.

Please note that, one week and then again one day prior to the hearing, you will be called by the law office above to confirm the date and time of the hearing. At that time you can request a language translator for your client, if necessary. If you confirm the hearing date during the final confirmation call and you and/or the claimant subsequently fail to appear for the hearing, you will be charged for any legal, translator and/or stenographic fees that the City incurs.

All applications for adjournments must be made in writing to the Comptroller's Office, Hearings Division, One Centre Street, #1222, New York, NY 10007, or by email to 50hadjournment@comptroller.nyc.gov. **The Office does not accept telephone requests for adjournments.**

Claimants will be permitted one adjournment without cause. Application for such adjournments should be made at least one week prior to the hearing date. Applications for additional adjournments must include the reason for the request, and will be granted for good cause only. It is your responsibility to advise the law firm at which the hearing is scheduled that you have requested an adjournment from the Comptroller's Office.

If a claimant fails to appear for a scheduled hearing, a default will be declared and claimant's failure to appear will be raised as an affirmative defense in any lawsuit filed.

You are requested to bring to the hearing original photographs of the accident scene and copies of all documents relevant to this claim including but not limited to:

- (1) prior written notice map;
- (2) all medical and hospital records;
- (3) authorizations for the Comptroller's Office to obtain, as applicable, medical, criminal, employment and/or school records, and loss of income documentation;
- (4) police reports.

Pursuant to State and Federal law, the Comptroller's Office is authorized to obtain, through its attorneys taking hearings, social security and Medicare or Medicaid numbers for tax and reporting purposes, and for the collection of liens held by the City and State.

Please be advised that nothing contained herein shall be construed as extending the statute of limitations beyond the statutory time.

All questions with regard to this notice should be addressed to the undersigned at mharary@comptroller.nyc.gov.

STOP: Please be aware that filing a false claim or aiding and abetting the filing of a false claim is a crime. Violators will be prosecuted to the fullest extent of the law.

Sincerely,

Michael Harary, Esq.
Director, Contract Services
Bureau of Law and Adjustment, Hearing
Division

Attachments can contain viruses that may harm your computer. Attachments may not display correctly.

NBAGLEY@BAGLEYFIRM.COM

From: NYCComptrollerClaimSystem
[oaisismoveimage@comptroller.net] **Sent:** Tuesday 7/12/2016 8:32 AM
To: NBAGLEY@BAGLEYFIRM.COM
Cc:
Subject: Claim receipt acknowledgment for claim number 2016PI020527
Attachments: AckLetter.pdf(6KB)

Please find attached an acknowledgment letter for your claim.

Sent from the New York City Office of the Comptroller. This email and any files transmitted with it are confidential and intended solely for the use of the individual or entity to whom they are addressed. This footnote also confirms that this email message has been swept for the presence of computer viruses.

Please consider the environment before printing this email.



**THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
CLAIMS AND ADJUDICATIONS
1 CENTRE STREET ROOM 1200
NEW YORK, N.Y. 10007-2341**

**Scott M. Stringer
COMPTROLLER**

015 - 151

Date: 7/12/2016
Claim Number: 2016PI020527
RE: Acknowledgment of Claim

TRAVIS BRECONIDGE c/o BAGLEY FIRM
903B SHERIDAN AVENUE
BRONX NY 10451
NBAGLEY@BAGLEYFIRM.COM

Dear Claimant:

We acknowledge receipt of your claim, which has been assigned the claim number shown above. Please refer to this claim number in any correspondence or inquiry you may have with our office.

We will do our best to investigate and, if possible, settle your claim. However, if we are unable to resolve your claim, **any lawsuit against the City must be started within one year and ninety days from the date of the occurrence.**

If you have any questions regarding your claim, you may contact us at either 212-669-8750 for property damage claims, or 212-669-2478 for claims involving personal injury.

Sincerely,
Bureau of Law & Adjustment

